wherewithal to monitor promoters, to bring equity capital into projects.

- Banks need to react more quickly and in a concerted way to borrower distress. The longer the delay in dealing with the borrower's financial distress, the greater the loss in enterprise value. Some banks are more agile (and have better lawyers), so the promoter continues servicing them while defaulting on other banks. In the absence of an efficient bankruptcy process that brings lenders together, the RBI has mandated the formation of a Joint Lending Forum (JLF) of lenders when the first signs of distress are perceived. The JLF is required to find a way to deal with the distressed enterprise quickly, with options ranging from liquidation to restructuring. In this way, we hope to coordinate lenders and prevent the borrower from playing one off against the other.
- The government's plan to expand the number of DRTs and DRATs is timely, and will be most effective if also accompanied by an expansion in facilities, trained personnel, and electronic filing and tracking of cases, as suggested by the Supreme Court. Also
    - Some monetary incentives to tribunals for bringing down the average duration of cases, without compromising on due process, could be contemplated.
    - Some limit on the number of stays each party can ask for could also be thought of.
    - Appeals to the DRAT should not be a matter of course. Indeed, DRATs should require borrower appellants to deposit a portion of the money ordered to be paid by the DRT as laid down in the